

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-_____

COMPLAINANTS' INITIAL STATEMENT REGARDING THE PUBLIC INTEREST

Pursuant to Commission Rule 210.8(b), Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, "Samsung") hereby submit this Statement Regarding the Public Interest in connection with the remedial orders Samsung seeks against Respondents Ouraring, Inc. and Ōura Health Oy (collectively, "Oura"). As discussed more fully below, Samsung submits that the issuance of the relief requested, including a permanent limited exclusion order and a cease and desist order, will not adversely impact the public health, safety, or welfare conditions in the United States, competitive conditions in the United States economy, the production of like or directly competitive articles in the United States, or United States consumers.

Additionally, in light of the Commission's determination in a recent proceeding involving the Respondents and similar wearable devices "that the issuance of remedial orders in th[e] investigation would not adversely affect the public interest,"¹ Samsung respectfully submits that public interest should not be delegated to the Administrative Law Judge.

I. Use of articles potentially subject to remedial orders in the United States.

Respondents' infringing products that are potentially subject to remedial orders are wearable devices, specifically rings worn on a users' fingers and that are typically used to monitor

¹ *Certain Smart Wearable Devices, Systems, and Components Thereof*, Inv. No. 337-TA-1398, Comm'n Op. at 18 (Sep. 5, 2025).

overall health and fitness, including tracking physical activity and sleep (collectively, “the Accused Products”). However, neither the Accused Products² nor the Domestic Industry Products³ are medical devices, and the parties essentially agreed as such in their respective public interest statements in Inv. No. 337-TA-3858.⁴

II. The potential remedial orders would not have an adverse effect on public health, safety, or welfare conditions in the United States.

Respondents’ Accused Products are not essential to the public health, safety, or welfare. As mentioned above, customers generally use the Accused Products to gain insight into their physical activity and sleep habits, which do not raise the type of public health, safety, or welfare issues that the Commission has previously found to implicate the public interest.⁵ Exclusion of Respondents’ Accused Products would therefore not have an adverse effect on public health,

² See *Oura & Medical Conditions*, OURA, <https://support.ouraring.com/hc/en-us/articles/360038214494-Oura-Medical-Conditions> (last visited Dec. 12, 2025) (“The Oura Ring is not a medical device and is not intended to diagnose, treat, cure, monitor, or prevent medical conditions or illnesses”).

³ See *Galaxy Ring*, SAMSUNG, <https://www.samsung.com/us/rings/galaxy-ring/> (last visited Dec. 12, 2025) (“The heart rate software functions are not intended for use in the diagnosis of disease or other conditions, or in the cure, mitigation, treatment or prevention of disease”).

⁴ See *Certain Smart Wearable Devices, Systems, and Components Thereof*, Inv. No. 337-TA-3858, Complainant’s Statement on the Public Interest at 2 (Nov. 18, 2025) (“[T]he Accused Products are neither a medical device nor essential to public health, safety, or welfare”); *Certain Smart Wearable Devices, Systems, and Components Thereof*, Inv. No. 337-TA-3858, Public Interest Statement of Proposed Respondents at 2 (Dec. 1, 2025) (“The products at issue... are not medical devices and are not essential to public health, safety, or welfare”).

⁵ See *Certain Light-Based Physiological Measurement Devices and Components Thereof*, Inv. No. 337-TA-1276, Comm’n Op. at 76-118 (Nov. 14, 2023) (finding public interest factors did not justify denying issuance of an LEO as to wearable electronic devices containing the claimed pulse-ox, among other fitness/health-related features); *Certain Wearable Electronic Devices with ECG Functionality and Components Thereof*, Inv. No. 337-TA-1266, Comm’n Op. at 52-82 (Jan. 20, 2023) (finding public interest factors did not justify denying issuance of an LEO as to wearable electronic devices containing the claimed ECG feature, among other fitness/health-related features).

safety, or welfare conditions in the United States, as the parties similarly agreed in Inv. No. 337-TA-3858.⁶

III. Complainants, their licensees, or third parties make like or directly competitive articles which could replace the subject articles if they were to be excluded from the United States and have the capacity to replace the volume of articles potentially subject to remedial orders in a commercially reasonable time.

Samsung and others make like and directly competitive articles that would replace Respondents' products if they are excluded from the United States.⁷ For example, Samsung, RingConn, and Amazfit sell smart rings in the United States that can replace the Oura products that would be excluded by the proposed remedial orders.⁸

Additionally, there are several health and fitness trackers in the U.S. marketplace supplied by Samsung and others, including the Galaxy smart watch DI products.⁹ Such products include smart watch-type products from third parties such as Apple, Fitbit, Google, and Garmin, among others.¹⁰ Thus, customers can choose from various third-party suppliers of directly competitive fitness and sleep monitors that directly compete with the Accused Products.¹¹ Moreover, these

⁶ See *supra* note 4.

⁷ See Dan Bracaglia, *Forget the Oura Ring 4 — these are the best Oura Ring alternatives in 2025*, TOM'S GUIDE (Oct. 24, 2025), <https://www.tomsguide.com/wellness/fitness-trackers/best-oura-ring-alternatives>.

⁸ See *id.*

⁹ See *Watches*, SAMSUNG, <https://www.samsung.com/us/watches/> (last visited Dec. 12, 2025); see also *Wearable Electronic Devices with ECG Functionality*, Comm'n Op. at 77 (listing a number of health/fitness-tracking devices available in the U.S. market and their features).

¹⁰ See, e.g., *The Best Fitness Trackers and Watches for Everyone*, WIRED (Nov. 18, 2025), <https://www.wired.com/gallery/best-fitness-tracker/> (surveying the market of wearable fitness tracking devices).

¹¹ See *Light-Based Physiological Measurement Devices*, Inv. No. 337-TA-1276, Comm'n Op. at 90-93 ("the Commission considers the scope of 'reasonable substitutes' to include substitutes that offer a wide range of health, safety, and wellness features . . . although a single device need not have" all the capabilities or features of the products subject to the exclusion order).

third parties are established suppliers of the competing products with the capability to increase market supply should the market so demand. The Commission made a similar conclusion in a related proceeding involving Respondents and similar wearable devices, finding that “a number of reasonable substitutes for the infringing products are available in the U.S. market, and those substitute products could be used in medical and research applications going forward. There are at least five smart ring alternatives as well as non-ring wearables from companies including Garmin, Fitbit and Whoop available today.”¹²

Given the breadth of options available to consumers, Samsung and the non-infringing third-party suppliers have the capacity to replace the volume of articles potentially subject to the proposed remedial orders in a commercially reasonable time.

IV. The requested remedial orders will not have a significant negative impact on consumers in the United States.

The requested exclusion and cease and desist orders will not adversely impact consumers in the U.S. If Respondents’ Accused Products are excluded from the U.S., Samsung, its licensees, or other companies will be able to meet U.S. market demand for non-infringing fitness and health monitors in a commercially reasonable time, including with products designed, manufactured, or serviced in the U.S. The Commission made a similar conclusion in Inv. No. 337-TA-1398, finding that “excluding the infringing products will not adversely affect U.S. consumers because they will continue to have access to many alternative smart rings and wearable devices.”¹³

The proposed remedial orders will not therefore have a significant negative impact on U.S. consumers.

¹² *Certain Smart Wearable Devices, Systems, and Components Thereof*, Inv. No. 337-TA-1398, Comm’n Op. at 19.

¹³ *Id.* at 23.

V. Conclusion.

The requested remedial orders do not raise any public interest concerns. Issuing a limited exclusion order and a cease and desist order in this Investigation against Respondents' infringing products will not adversely affect the public health, safety, or welfare in the United States, competitive conditions in the United States economy, the production of like or competitive articles in the United States, and the availability of such products and related services to consumers.

Dated: December 12, 2025

/s/ D Sean Trainor

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